

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

# CASE OF TSUKANOV AND TORCHINSKIY v. RUSSIA

*(Applications nos. 35000/13 and 35010/13)*

JUDGMENT

STRASBOURG

17 April 2018

*This judgment is final but it may be subject to editorial revision.*



**In the case of Tsukanov and Torchinskiy v. Russia,**

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Helen Keller, *President,*
Pere Pastor Vilanova,
María Elósegui, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having deliberated in private on 27 March 2018,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in two applications (nos. 35000/13 and 35010/13) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") by two Russian nationals, Mr Filipp Igorevich Tsukanov and Mr Artem Aleksandrovich Torchinskiy ("the applicants"), on 20 May 2013.

2. The applicants were represented by Mr K. Terekhov, a lawyer practising in Moscow. The Russian Government ("the Government") were represented initially by Mr G. Matyushkin, the Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr M. Galperin.

3. On 24 March 2014 the applications were communicated to the Government.

# THE FACTS

## I. THE CIRCUMSTANCES OF THE CASE

4. The applicants were born in 1984 and 1979 respectively and live in Moscow.

5. On 14 December 2012 the State Duma adopted at first reading a draft law which, in particular, prohibited adoption of children of Russian nationality by US citizens.

6. On 17 December 2012 the official daily newspaper *Rossiyskaya Gazeta* announced that the second reading was scheduled for 19 December 2012.

7. According to the applicants, they read on various online social networks that many people intended to stage solo "pickets" (*одиночные*

*пикеты*) on 19 December 2012 in front of the State Duma to express their opposition to the draft law. The format of solo "pickets" was chosen because there was no longer time to observe the minimum statutory three-day notification period for other types of (group) events.

8. The applicants decided to hold their own solo "pickets" and at around 9 a.m. positioned themselves, holding banners, in the vicinity of the State Duma at some distance from other protesters (see also *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 206-15, 7 February 2017).

9. According to the applicants, they were arrested by the police several minutes later and brought to a police station. At 10.30 a.m. the police drew up a record of the administrative escorting (*протокол административного доставления*) in respect of each applicant. A record of administrative arrest (*протокол административного задержания*), drawn up at the same time, stated that the applicants had arrived at the police station at 10.30 a.m. The first applicant, Mr Tsukanov, made a handwritten note on his arrest record that he had been actually apprehended at 9.20 a.m. The second applicant, Mr Torchinskiy, made a handwritten note on his escorting record that he had been actually apprehended at 9.30 a.m.

10. At the police station both applicants were accused of organising and holding a group public event without prior notification, in breach of Article 20.2 § 2 of the Code of Administrative Offences (hereinafter, "CAO"). The administrative offence records indicate that the offences were committed at 10 a.m. The first applicant made a handwritten note that he came to the event venue at 9 a.m. and was arrested at 9.20 a.m.

11. The first applicant was released at 1.20 p.m. The second applicant was released at 1.10 p.m.

12. On 15 January 2013 the justice of the peace of the 369th Court Circuit of the Tverskoy District of Moscow found the second applicant guilty under Article 20.2 § 2 of the CAO and sentenced him to a fine of 20,000 Russian roubles (RUB), (about 495 euros (EUR) at the time). The justice of the peace found it established, on the basis of the records and testimony of police officers, that the applicant had taken part in a "picket" involving fifty people. That "picket" was unlawful because no notification had been submitted by the organisers as required by the Public Events Act (hereinafter "PEA"). The applicant had waved a banner, thereby attracting the attention of passers-by and journalists assembled for the occasion. He had not complied with the police order to stop picketing.

13. On 6 February 2013 the justice of the peace of the 369th Court Circuit of the Tverskoy District of Moscow found the first applicant guilty under Article 20.2 § 2 of the CAO and sentenced him to a fine of RUB 20,000 (about EUR 495 at the time), with the reasoning identical to that in the judgment of 15 January 2013. The justice of the peace also relied

on police reports and testimony of a police officer who had apprehended the first applicant at the venue of the public event.

14. Both applicants appealed, insisting that each of them had held a solo demonstration which did not require prior notification of the authorities. The first applicant also pointed out that he had been arrested earlier than indicated in the arrest record.

15. On 13 February and 11 March 2013 the Tverskoy District Court of Moscow upheld the judgments concerning the second and the first applicant respectively.

16. The second applicant applied for review of the court decisions under Article 30.12 of the CAO. On 28 June 2013 the Deputy President of the Moscow City Court partly allowed his complaint and changed the classification of the administrative charge against him. The second applicant was found guilty of the breach of the established procedure for the conduct of public events committed by a participant, an offence punishable under Article 20.2 § 5 of the CAO. His fine was reduced to RUB 10,000 (about EUR 233 at the time).

### II. RELEVANT DOMESTIC LAW

17. For a summary of domestic law and practice concerning regulations relating to the conduct of public events, liability for breaches committed in their course and administrative escorting and arrest, see *Lashmankin and Others,* cited above, §§ 216-312, and *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 47-85, 26 April 2016.

18. Since 6 January 2013 Moscow City Law no. 10 of 4 April 2007 provides that the distance between solo demonstrations should be no less than fifty meters. It also specifies that simultaneous demonstrations should be treated as solo demonstrations provided that they do not have a common goal and organisation (section 2.3).

## THE LAW

### I. JOINDER OF THE APPLICATIONS

19. Given their common factual and legal background, the Court decides that the two applications should be joined pursuant to Rule 42 § 1 of the Rules of Court.

## II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

20. The applicants complained that their arrest had been unlawful and not "necessary in a democratic society". The Court considers it appropriate to examine this complaint under Article 5 § 1, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...
>
> (b) the lawful arrest or detention of a person for non- compliance with the lawful order of a court or in order to secure the fulfilment of any obligation prescribed by law;
>
> ...
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ..."

### A. Admissibility

21. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

### B. Merits

#### *1. The parties' submissions*

22. The applicants submitted that their arrest and detention had not been recorded. The police had not made administrative arrest records. Nor had they mentioned in the administrative offence records that the applicants had been escorted to the police station. The applicants' arrest had therefore been unlawful. Moreover, given that they had not committed any offence, their arrest had not had any legitimate purpose under Article 5 § 1.

23. The Government submitted that the applicants had been escorted to the police station and then administratively arrested for the legitimate purpose of drawing up an administrative offence record. While Russian law did not establish a maximum length of time for escorting to a police station, administrative arrest was limited to three hours. That requirement had been respected in the applicants' cases, as their administrative arrest had not exceeded three hours: from 10.30 a.m. to 1.20 p.m. as regards the first

applicant and from 10.30 a.m. to 1.10 a.m. as regards the second applicant. All procedural requirements prescribed by law had therefore been respected.

*2. The Court's assessment*

24. The Court reiterates that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 of the Convention essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof. However, the "lawfulness" of detention under domestic law is not always the decisive element. The Court must in addition be satisfied that detention during the period under consideration was compatible with the purpose of Article 5 § 1 of the Convention, which is to prevent individuals from being deprived of their liberty in an arbitrary fashion. Furthermore, the list of exceptions to the right to liberty secured in Article 5 § 1 of the Convention is an exhaustive one, and only a narrow interpretation of those exceptions is consistent with the aim of that provision, namely to ensure that no one is arbitrarily deprived of his liberty (see *Giulia Manzoni v. Italy*, 1 July 1997, § 25, *Reports of Judgments and Decisions* 1997-IV).

25. The Court observes that both applicants were first taken to the police station in accordance with Article 27.2 of the CAO and then, once at the police station, administratively arrested in accordance with Article 27.3 of the CAO (see paragraph 9 above).

26. As regards the escorting procedure, the record of administrative escorting stated that both applicants had been taken to the police station for the purpose of drawing up an administrative offence record. Article 27.2 of the CAO provides that a suspected offender could be escorted to a police station for the purpose of drawing up an administrative offence record only if such a record could not be compiled at the place where the offence had been discovered. The Government have not argued that in each applicant's case this was impossible, and no obstacles to drawing up the record on the spot may be discerned from the documents in the case file (see, for similar reasoning, *Navalnyy and Yashin v. Russia*, no. 76204/11, §§ 68 and 93, 4 December 2014, and, *mutatis mutandis*, *Novikova and Others*, cited above, §§ 182-83).

27. As regards the applicants' administrative arrest, neither the Government nor the domestic authorities provided any justification as required by Article 27.3 of the CAO, namely that it was an "exceptional case", and/or that it was "necessary for the prompt and proper examination of the administrative case and to secure the enforcement of any penalty to be imposed". In the absence of any explicit reasons given by the authorities for arresting the applicants, the Court considers that their administrative arrest was unlawful (see, for similar reasoning, *Frumkin v. Russia*, no. 74568/12, § 150, ECHR 2016 (extracts)).

28. For these reasons the Court is not satisfied that the escorting of the applicants to the police station and their administrative arrest complied with Russian law so as to be "lawful" within the meaning of Article 5 § 1. There has accordingly been a violation of that provision in respect of each applicant.

## III. ALLEGED VIOLATIONS OF ARTICLE 6 OF THE CONVENTION

29. The applicants complained of the lack of a prosecuting party at the court hearings in the administrative proceedings against them. They also argued that the trial courts had not been "established by law" having no jurisdiction in their cases. The applicants relied on Article 6 § 1 of the Convention, the relevant part of which reads as follows:

> "In the determination of ... any criminal charge against him, everyone is entitled to a fair ... hearing ... by an independent and impartial tribunal established by law."

30. The Government submitted that Article 6 of the Convention was not applicable to the contested proceedings, because the applicants had been charged with an administrative rather than a criminal offence. They further argued that the applicants had not raised the jurisdictional issue before the trial court and/or the appeal court and therefore had not exhausted domestic remedies. The Government also mentioned that the CAO did not provide for mandatory participation of a public prosecutor in each case concerning an administrative offence. Their submissions in that respect were similar to those made in *Karelin v. Russia* (no. 926/08, §§ 46-48, 20 September 2016).

31. The applicants complained that the charges against them, which they argued to be criminal within the meaning of Article 6, had been examined by a justice of the peace instead of a district court as provided by the domestic law. They argued that even though they had not raised this issue before the domestic courts, the latter should have examined this type of matter *proprio motu*. The applicants further submitted that in the absence of a prosecuting party, the trial judge had taken the role of prosecution and had collected and presented incriminating evidence, including by way of calling and questioning police officers. The court was therefore not "impartial" within the meaning of Article 6 of the Convention.

### A. Admissibility

32. First, the Court accepts the Government's argument that the applicants did not comply with the exhaustion requirement in respect of their argument relating to the jurisdictional issue. It follows that this complaint must be rejected under Article 35 §§ 1 and 4 of the Convention for non-exhaustion of domestic remedies (see *Lashmankin and Others*, cited above, § 510).

33. Second, the Court has previously found that Article 6 of the Convention was applicable under its criminal limb to proceedings involving charges under Article 20.2 of the CAO punishable by a fine (see *Mikhaylova v. Russia*, no. 46998/08, § 69, 19 November 2015). In addition, it is noted that the relevant offence became punishable by compulsory labour as an alternative statutory sentence at the time of the events in the present cases.

34. The Court notes that the complaint relating to the lack of a prosecuting party at the court hearings in the administrative-offence proceedings is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

### B. Merits

35. The Court has previously found that the lack of a prosecuting party in the context of oral hearings resulting in the determination of administrative charges constitutes a serious shortcoming in breach of objective impartiality requirement of Article 6 § 1 of the Convention (see *Karelin*, cited above, §§ 69-84). It notes that the essential factual and legal elements of the present case and the case of *Karelin* (ibid., §§ 59-68) are similar. The parties' submissions in the present case disclose no reason for the Court to depart from its earlier judgment.

36. There has therefore been a violation of Article 6 § 1 of the Convention on account of the objective impartiality requirement in relation to each applicant.

37. Lastly, in view of the above conclusions and also in the absence of any specific submissions from the applicants, it is not necessary to examine separately whether the same lack of a prosecuting party, taken alone or in combination with other procedural shortcomings, also had an adverse effect on and entailed a violation of the principle of equality of arms or the requirement of adversarial procedure in the circumstances of the case.

## IV. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

38. The applicants complained that the precipitated termination of their solo demonstrations, their escorting to the police station, their retention there and their convictions for an administrative offence amounted to an unlawful and disproportionate interference with their right to freedom of peaceful assembly.

39. In view of the nature and scope of the applicants' arguments and the authorities' reliance on the PEA's rules relating to group events, the Court finds it appropriate to examine this case under both Articles 10 and 11 of the Convention, which read as follows:

**Article 10**

"1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority ...

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime ..."

**Article 11**

"1. Everyone has the right to freedom of peaceful assembly ...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others ..."

## A. Admissibility

40. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

## B. Merits

### *1. The parties' submissions*

41. The applicants argued that they had participated in a spontaneous public protest against a draft statute prohibiting adoption of Russian children by United States nationals. The date of the examination of the draft law by the State Duma had been announced two days before. Given the minimum three-day notification period, there was no time to submit a notification before the protest. Those people who wanted to protest against the adoption of that law had no other choice but to hold solo "pickets" which did not require prior notification of the authorities. Although the protesters, including the applicants, had positioned themselves at a distance of more than fifty meters from each other, the authorities had regarded their solo demonstrations as a single public event, had stopped it, arrested the participants and fined them for participating in a public event held without prior notification.

42. The Government contended that the applicants had acted unlawfully by holding a public event without the authorities' approval. Its dispersal had therefore been lawful and justified. They disputed that the event held by the

applicants could be qualified as genuinely spontaneous. The date of the examination of the draft law had indeed been announced two days before, making it impossible to submit a notification within the statutory time-limit. However, on that date the State Duma had examined the draft law at the second reading, while three readings were necessary for a law to be adopted. There had been sufficient time to organise a public event in accordance with the procedure prescribed by law before the third and final reading of the draft law by the State Duma. The facts of the present case had not disclosed special circumstances such as would warrant an immediate demonstration as the only adequate response. The applicants had therefore been lawfully fined for participating in a public event held without prior notification. The amount of fines had been reasonable.

*2. The Court's assessment*

43. The parties agreed that the termination of the applicants' participation in the event, their escorting to the police station, their retention there and their administrative conviction constituted an interference with their right to freedom of peaceful assembly and their right to freedom of expression. Such interference constitutes breach of Articles 10 and 11 of the Convention unless it is prescribed by law, pursues one or more legitimate aims under paragraph 2 of each Article and is "necessary in a democratic society".

44. As regards the "lawfulness" requirement, the Court refers to its findings under Article 5 § 1 of the Convention in paragraph 28 above relating to the applicants' escorting to the police station and retention there. The applicants submitted no convincing argument that other elements of the "interference" as described in paragraph 43 above had had no basis in the domestic law. Thus, the Court will focus in the present case on the arguments pertaining to other aspects of the applicable test, while having regard to the specific arguments raised by the parties.

**(a) Solo demonstration**

45. First of all, the Court has taken note of the applicants' submission that both attempted to stage solo demonstrations, which happened to coincide as to the venue (the object being picketed) and the timing.

46. In this connection the Court refers to its findings made in *Novikova and Others* (cited above, §§ 193 and 197-99) in relation to the PEA which, irrespective of a statutory distance requirement and compliance with it by simultaneous solo demonstrators, empowered courts to classify *post factum* a situation as a group event (the "reclassification rule" under section 7(1.1) of the PEA) and, by implication, to punish for non-compliance with the prior notification procedure applicable to such event. In the Court's view, the intended statutory purposes (such as affording the authorities an opportunity to take timely and adequate measures to ensure the requisite

order for running a given civic initiative and to secure public safety and protection of the rights of the event participants and others) would, normally, be fully attainable through the reasonable application of a distance requirement, without any "pressing social need" – relating to the pursuance of any particular legitimate aim such as the mentioned one – for applying the "reclassification rule" and for the related enforcement of the prior notification procedure.

47. It is noted that there was no specific statutory distance requirement in Moscow prior to January 2013 (see paragraph 18 above). At the same time, the Court has no reason to doubt that each applicant was merely standing with a banner at some – apparently, non-negligible – distance from other protesters in so far as it was practicable in the vicinity of the object being picketed, the State Duma; each applicant's expressive conduct was peaceful and non-disruptive. The domestic courts considered the situation as a single group event in the form of a static demonstration. However, no compelling considerations relating to public safety, prevention of disorder or protection of the rights of others were at stake and relied upon when using this factual assertion for convicting each applicant specifically on account of the non-observance of the notification procedure and also when attributing an active role to at least one of them (see paragraphs 10, 12, 13 and 16 above). The only relevant consideration was the need to punish the unlawful conduct solely arising from the non-observance of the notification procedure. This was not sufficient in the absence of any aggravating element to justify the interference with the applicants' right to freedom of expression in the circumstances of the case.

**(b) Spontaneous assembly**

48. Alternatively, should it be accepted as convincingly established that the applicants did indeed take part in an "assembly" (with each other and/or others), seen in the context of Article 11 of the Convention, the present case falls within the scope of matters relating to so-called "spontaneous assemblies". This specific matter was already examined by the Court in *Lashmankin and Others* (cited above, §§ 443-52) and, as it happens, in relation to the very same factual background. The Court stated, in particular, that the PEA made no allowance for special circumstances, where an immediate response to a current event was warranted in the form of a spontaneous "assembly" within the meaning of Article 11 § 1 of the Convention.

49. The Court observes that the applicants wanted to protest against a draft law prohibiting the adoption of Russian children by US nationals. The date of the parliamentary examination of the draft law was announced two days before, making it impossible for the protesters to comply even with a three-day notification time-limit for "pickets" (see paragraphs 5-7 above). The failure to inform the public sufficiently in advance of the date of the

parliamentary examination of the draft law therefore left the protesters with the option of either foregoing their right to peaceful assembly altogether, or of exercising it in defiance of the administrative requirements (see *Lashmankin and Others*, cited above, § 453).

50. In the proceedings against each applicant the courts limited their assessment to establishing that he had taken part in a "picket" held without prior notification and omitted to examine whether there had been special circumstances calling for an immediate response to a current event in the form of a spontaneous assembly and justifying derogation from the strict application of the notification time-limits (see paragraphs 12-13 above). In the absence of proper judicial review of these issues in the CAO cases or separate proceedings, the Court cannot speculate as to whether the facts of the present case disclosed such special circumstances to which the only adequate response was an immediate assembly. For their part, the Government have not given any convincing reason why it should have been "necessary in a democratic society" to make no exceptions to the application of the notification procedure, including its requirement of specific time-limits for notification, where it is impossible to comply with such time-limits. In the Court's view, the automatic and inflexible application of the notification time-limits without any regard to the specific circumstances of the present case amounted to an interference which was not justified under Article 11 § 2 of the Convention (see *Lashmankin and Others*, cited above, §§ 473 and 475).

#### (c) Conclusion

51. Having regard to the findings in paragraphs 28, 47 and 50 above, the Court considers that the respondent State breached the requirements of Article 11 § 2 of the Convention, seen in the light of Article 10.

52. There has therefore been a violation of Article 11 of the Convention in respect of each applicant.

## V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

53. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

### A. Damage

54. Each applicant claimed 12,000 euros (EUR) in respect of non-pecuniary damage. Mr Torchinskiy also claimed 10,000 Russian

roubles (RUB) in respect of pecuniary damage representing the fine he had paid.

55. The Government contested the claims for non-pecuniary damage as excessive. As regards the claim for pecuniary damage, they submitted that the fine had been imposed lawfully on Mr Torchinskiy for an administrative offence.

56. The Court considers that there is a direct causal link between the finding of a violation under Article 11 of the Convention and the fine Mr Torchinskiy had paid (see, for similar reasoning, *Lashmankin and Others*, § 515, and *Novikova and Others*, § 232, both cited above). The Court therefore awards Mr Torchinskiy EUR 144 in respect of pecuniary damage, plus any tax that may be chargeable.

57. Taking into account the nature and scope of the violations of Articles 5, 6 and 11 of the Convention in respect of each applicant and making its assessment on an equitable basis, the Court awards each applicant EUR 10,000 in respect of non-pecuniary damage, plus any tax that may be chargeable.

### B. Costs and expenses

58. Each applicant also claimed EUR 8,500 for legal representation before the Court and EUR 32 for postal expenses. The applicants presented copies of legal services agreements and postal bills, and asked that their legal fees for representation be paid directly to the bank account of their representative Mr Terekhov.

59. The Government submitted that the amounts of legal fees for representation before the Court were excessive and unreasonable, and that the postal bills did not contain an indication that the mail was addressed to the Court.

60. According to the Court's case-law, an applicant is entitled to the reimbursement of costs and expenses only in so far as it has been shown that these have been actually and necessarily incurred and are reasonable as to quantum. Regard being had to the above criteria and the documents in its possession, the Court considers it reasonable to award a lump sum of EUR 3,000 relating to the legal representation of both applicants, plus any taxes that may be chargeable, payable to the bank account of Mr Terekhov, and to award each applicant EUR 32 in respect of postal expenses.

### C. Default interest

61. The Court considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

## FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints raised under Article 5 § 1, Article 6 § 1 as regards the lack of a prosecuting party at the court hearings in the administrative proceedings, and under Article 11 of the Convention admissible and the remainder of the applications inadmissible;

3. *Holds* that there has been a violation of Article 5 § 1 of the Convention in respect of each applicant;

4. *Holds* that there has been a violation of Article 6 § 1 of the Convention on account of the requirement of objective impartiality in respect of each applicant;

5. *Holds* that there has been a violation of Article 11 of the Convention in respect of each applicant;

6. *Holds*
   (a) that the respondent State is to pay, within three months the following amounts, to be converted into Russian roubles at the rate applicable at the date of settlement:
      (i) EUR 144 (one hundred and forty four euros), plus any tax that may be chargeable, to Mr Torchinskiy in respect of pecuniary damage;
      (ii) EUR 10,000 (ten thousand euros), plus any tax that may be chargeable on this amount, to each applicant in respect of non-pecuniary damage;
      (iii) EUR 3,000 (three thousand euros), plus any tax that may be chargeable to the applicants, in respect of the legal representation, payable to the bank account of their representative Mr Terekhov;
      (iv) EUR 32 (thirty-two euros), plus any tax that may be chargeable on this amount, to each applicant in respect of postal expenses;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the remainder of the applicants' claim for just satisfaction.

Done in English, and notified in writing on 17 April 2018, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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| Fatoş Aracı | Helen Keller |
| Deputy Registrar | President |